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Why candy lovers shouldn't panic over California's 'Skittle ban' - Bill aims to ban chemicals that appear in the candy, perhaps setting an example nationwide

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For fans of candy – and who isn't one? – the headlines have been alarming: a California bill would "ban Skittles", the rainbow-colored fruity sweets, alongside treats including M&Ms, Nerds and some baked goods.

It's true that a lawmaker is pushing for changes that would affect the products, but the reality is much less terrifying.

A measure in the California assembly seeks to ban five chemicals that turn up in popular snacks – including red dye No 3, potassium bromate, propyl paraben, brominated vegetable oil and titanium dioxide, an ingredient in Skittles – but the bill's sponsor is an avowed Skittles fan.

"I love Skittles. I would vote against a bill to ban Skittles and I think there is a 0% chance that this bill is going to result in Skittles or any other product coming off the shelves," says Jesse Gabriel, a state lawmaker in southern California.

Instead, Gabriel says, if the bill passes, he would expect manufacturers of foods that contain some of the five banned chemicals to alter their recipes. The additives – substances placed in foods in small quantities to enhance them in some way – have been linked to various health harms. European authorities, for instance, said they could not rule out an association between titanium dioxide and cancer, while red dye No 3, which is banned in US cosmetics but not food, may be linked to thyroid cancer in animals.

These chemicals are already banned in Europe, and manufacturers could simply modify their recipes here as they do there, Gabriel argues.

"No one's going to walk away from the California market," he says.

He was inspired to take action after "seeing that there was really good data and science linking these chemicals to cancer, to reproductive harm, to behavioral and developmental issues in kids", he says, noting that a number of companies, including Coca-Cola, Pepsi and Dunkin', have stopped using some of the additives.

Whether the bill passes or not, it's worthwhile, says Diana Winters, deputy director at the Resnick Center for Food Law & Policy at UCLA School of Law. "I think its purpose, which is valuable, is getting the FDA to look again at these chemicals, and possibly to re-evaluate its entire system for reviewing food additives," she says.

That system has long been the subject of criticism. "Our food additive system is broken," she says. "The FDA doesn't review food additives for safety. What they do is allow companies to decide whether or not they're safe based on scientific studies. And then FDA has the power to review this, but doesn't always do so."

That issue is very much on Gabriel's mind. "Approximately 99% of chemicals that go into food in the United States go through no independent, meaningful FDA review," he says. "The real story here is the lack of federal oversight."

And even if the bill doesn't lead to federal change, it could function as a "PR maneuver" to get companies to willingly make changes, says Bill Marler, a prominent food safety lawyer. "My goodness, if the French and Germans can do it, why not us too?" he says.

Mars, the manufacturer of Skittles, has already come under pressure over titanium dioxide: a California man's

lawsuit last year called them “unfit for human consumption”. The company said its ingredients were safe.

In a statement, Christopher Gindlesperger, a spokesperson for the National Confectioners Association industry group, said there was “no evidence to support banning the ingredients listed in the bill. The ingredients that would be banned under this proposal have all been approved by the US Food and Drug Administration. Food safety is the number one priority for US confectionery companies.”

Winters doesn’t think the bill is likely to pass – and if it does, she expects blowback, and even possible litigation from affected manufacturers. Companies might try to argue that the bill interferes with federal processes, she said. Already, industry coalitions have written to lawmakers to fight the bill, saying it “usurps the comprehensive food safety and approval system for these five additives and predetermines ongoing evaluations”, USA Today reported.

Gabriel, for his part, is hopeful the bill will succeed, and says that if it does it could spark change in other states: it seems unlikely that Skittles would change its recipe in the most populous US state only to keep it the same everywhere else. Winters agrees, noting that New York’s health-conscious menu labeling requirements eventually became federal law.

“They often say: as goes California, so goes the nation,” Gabriel says.

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